

Although this reasoning is not without some force, these decisions cannot be reconciled with what the Supreme Court said in Harlow and Davis. As noted earlier, the impetus for changing the qualified immunity standard in Harlow was the Court's candid recognition that (457 U.S. at 816):

Rule 56 of the Federal Rules of Civil Procedure provides that disputed questions of fact ordinarily may not be decided on motions for summary judgment. And an official's subjective good faith has been considered to be a question of fact that some courts have regarded as inherently requiring resolution by a jury.

Since Harlow dropped the subjective inquiry precisely to remedy this problem, it would be incongruous to conclude now that Rule 56 precludes summary resolution of qualified immunity claims because an official's intent is a question of fact for the jury. Indeed, any question about this should have been laid to rest by Davis, where the Supreme Court unequivocally reaffirmed that Harlow "rejected the inquiry into state of mind in favor of a wholly objective standard" (104 S.Ct. at 3018). As a consequence, in those cases where purpose is determinative of whether clearly established law was violated, the defendant official's purpose, wherever possible, should be determined by reference to objective factors without regard to his actual state of

^{52/} (Cont.) defendants on notice of the nature of the claim and enable them to prepare a response and, where appropriate, a summary judgment motion on qualified immunity grounds" (id. at 29).